

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Lydia Edwards

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to trafficking and abuse survivors.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Lydia Edwards</i>	<i>Third Suffolk</i>	
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	<i>1/11/2026</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>1/21/2026</i>

SENATE No.

By Ms. Edwards, a petition (accompanied by bill) (subject to Joint Rule 12) of Lydia Edwards
for legislation relative to trafficking and abuse survivors. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to trafficking and abuse survivors.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority
of the same, as follows:*

1 SECTION 1. Section one of Chapter 258F of the General Laws are hereby amended by
2 adding the following definitions:

3 "Certifying entity" 'All law enforcement, to include prosecutor or state or local entity
4 courts or administrative bodies that have the authority to detect, investigate, prosecute, or
5 adjudicate any of the crimes under section 2 of this chapter or severe forms of trafficking in
6 persons under 22 U.S.C. 7102(11).

7 "Exceptional circumstances" is defined to include: (i) when any victim of criminal
8 activity who intends to petition for a nonimmigrant visa under 8 U.S.C. 1101(a)(15)(U) or a
9 victim of severe forms of trafficking in persons is in immigration detention, is in removal
10 proceedings, or has been ordered removed; (ii) when any qualifying derivative family member is
11 in immigration detention, in removal proceedings, or has been ordered removed; and (iii) when

any qualifying derivative family member is at risk of aging out of the immigration benefit under 8 U.S.C. 1101(a)(15)(U)(ii) or 8 U.S.C. 1101(a)(15)(T)(ii).

A “qualifying derivative family member” is defined to include a qualifying family member of a victim of criminal activity who intends to petition for a nonimmigrant visa under 8 U.S.C. 1101(a)(15)(U) or a victim of severe forms of trafficking in persons who intends to petition for a nonimmigrant visa under 8 U.S.C. 1101(a)(15)(T), who is eligible to apply for U nonimmigrant status under 8 U.S.C. 1101(a)(15)(U)(ii) or T nonimmigrant status under 8 U.S.C. 1101(a)(15)(T)(ii).

SECTION 2. Said chapter 258F is further amended by striking out section 2 and inserting in place thereof the following section:

Section 2. Certifying entities shall complete and sign nonimmigrant status certification forms for: (i) victims of any of the enumerated crimes under 8 U.S.C. 1101(a)(15)(U); and (ii) victims of severe forms of trafficking in persons under 22 USC 7102(11), who intend to petition for nonimmigrant visas under 8 U.S.C. 1101(a)(15)(T).

SECTION 3. Said chapter 258F is further amended by striking out section 3 and inserting in place thereof the following section:

Section 3. A certifying entity shall respond to a nonimmigrant status certification request from a victim who intends to petition for a nonimmigrant visa under 8 U.S.C. 1101(a)(15)(U) or a victim of severe forms of trafficking in persons who intends to petition for a nonimmigrant visa under 8 U.S.C. 1101(a)(15)(T) not later than 30 days after receiving the request for certification, unless Section 4 applies. The certifying entity shall respond to the request by: (i) completing and signing the certification forms; (ii) issuing a written denial of the request, without prejudice,

informing the victim of the reason that the request does not meet the requirements of the certifying entity's policy under section 2; or (iii) in extenuating circumstances outside the control of the certifying entity that prevent the certifying entity from responding to the certification request in the required time period, issuing a written explanation of the delay, the process the certifying entity will undertake to respond and a projected time frame for such response.

SECTION 4. Said chapter 258F is further amended by striking out section 4 and inserting in place thereof the following section:

Section 4. If the requestor notifies the certifying entity in writing of exceptional circumstances, a certifying entity shall respond to a nonimmigrant status certification request from a victim of criminal activity who intends to petition for a nonimmigrant visa under 8 U.S.C. 1101(a)(15)(U) or from a victim of severe forms of trafficking in persons who intends to petition for a nonimmigrant visa under 8 U.S.C. 1101(a)(15)(T) not later than 10 days or two (2) days before the age-out of a qualifying derivative family member. The certifying entity shall respond to the request by: (i) completing and signing the certification forms; (ii) issuing a written denial of the request, without prejudice, informing the victim of the reason that the request does not meet the requirements of the certifying entity's policy under section 2; or (iii) in extenuating circumstances outside the control of the certifying entity that prevent the certifying entity from responding to the certification request in the required time period, issuing a written explanation of the delay, the process the certifying entity will undertake to respond and a projected time frame for such response.

SECTION 5. Said chapter 258F is further amended by adding the following sections:

Section 5. (a) If an agency or municipality fails to comply with a requirement of sections 3 and 4, issues a response the requestor believes is in violation of sections 3 and 4, or fails to issue a policy for completing and signing nonimmigrant status certification as required by section 2 of chapter 258F of Massachusetts General Laws, the person who submitted the initial request for certification may obtain judicial review through an action in superior court seeking relief in the nature of certiorari under section 4 of chapter 249 and as prescribed in subsection (c).

(b) A requestor may initiate a civil action to enforce the requirements of this chapter, and section 2 of chapter 258F of Massachusetts General Laws. Any action under this subsection shall be filed in Suffolk superior court with respect to agencies and, with respect to municipalities, in the superior court in the county in which the municipality is located. The superior court shall have available all remedies at law or in equity; provided, however, that any damages awarded shall be consistent with subsection (c).

(c) In any action filed by a requestor pursuant to this section:

(1) the superior court shall have jurisdiction to enjoin agency or municipal action;

(2) the superior court shall determine the propriety of any agency or municipal action de novo and may inspect the contents of any defendant agency or municipality record in camera, provided, however, that the in camera review shall not waive any legally applicable privileges, including without limitation, the attorney-client privilege and the attorney work product privilege;

(3) the superior court shall, when feasible, expedite the proceeding;

(4) The superior court may award reasonable attorney fees and costs in any case in which the requester obtains relief through a judicial order, consent decree, or the provision of requested documents after the filing of a complaint. There shall be a presumption in favor of an award of fees and costs unless the agency or municipality establishes that:

(i) the agency or municipality did not violate this chapter;

(ii) the agency or municipality reasonably relied upon a published opinion of an appellate court of the commonwealth based on substantially similar facts; or

(iii) the agency or municipality reasonably relied upon a published opinion by the attorney general based on substantially similar facts.

If the superior court determines that an award of reasonable attorney fees or costs is not warranted, the judge shall issue written findings specifying the reasons for the denial.

(5) If a requestor has obtained judgment in superior court in a case under this section and has demonstrated that the defendant agency or municipality, in failing to comply with a requirement of sections 3 and 4, issuing a response the requestor believes is in violation of sections 3 and 4, or failing to issue a policy for completing and signing nonimmigrant status certification as required by section 2 of chapter 258F of Massachusetts General Laws, did not act in good faith, the superior court may assess punitive damages against the defendant agency or municipality in an amount not less than \$1,000 nor more than \$5,000, awarded to the person who submitted the initial request.

(6) Notwithstanding any other provision of this chapter, the attorney general may, at any time, file a complaint in Suffolk superior court with respect to agencies and, with respect to

municipalities, in the superior court in the county in which the municipality is located, to ensure compliance with this chapter and section 2 of Chapter 258F of Massachusetts General Laws. The attorney general may further intervene as of right in any action filed in accordance with this section. In any action filed or in which the attorney general has intervened under this subsection, paragraphs (1) and (4) of subsection (c) shall apply.

Section 6. (a) Annually, not later than February 1, each certifying entity shall report to the executive office of public safety and security: (i) the number of individuals that requested nonimmigrant status certification; (ii) the number of certification forms that were completed and signed; and (iii) the number of such requests that were denied. The information reported under this subsection shall not include any personal identifying information of an individual requesting nonimmigrant status certification.

(b) Annually, not later than April 1, the executive office of public safety and security shall file a report with the clerks of the house of representatives and the senate, the joint committee on the judiciary and the joint committee on public safety and homeland security on the information received under subsection (a). The report shall include, but not be limited to: (i) the number of individuals that requested nonimmigrant status certification, delineated by certifying entity; (ii) the number of certification forms that were completed and signed, delineated by certifying entity; (iii) the number of such requests that were denied, delineated by certifying entity; and (iv) total statewide statistics on nonimmigrant status certifications and denials. The report shall not include information that would allow the public to ascertain the identity of an individual requesting nonimmigrant status certification. The executive office shall also make the report publicly available on its website.